

Sravan Kumar @ Vikki v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · WRIT - C No. - 20629 of 2022 · **Writ disposed; relegated to Para 6.8 objection with stay.**

HEADNOTE

Challenging a tehsildar recovery certificate for an electricity demand, the Division Bench, without examining merits, disposed of the writ by permitting an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Sravan Kumar alias Vikki assailed a recovery certificate dated 8 October 2021 issued by the Tehsildar, Kairana, District Shamili, seeking certiorari and a mandamus restraining coercive action against his land revenue. The Power Distribution Corporation (respondents 2 and 3) stated on instructions that he could file an objection to the demand, which would be decided in a time-bound manner. The High Court did not examine the underlying demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment; stay of recovery

HOLDING

Without expressing any opinion on merits, the writ against a tehsildar recovery certificate for an electricity demand is disposed of with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against tehsildar recovery of an electricity demand disposed of by relegating the consumer to a Para 6.8 objection, without any determination of the demand. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed within four weeks, the licensee must decide it within the next four weeks after hearing; coercive recovery is stayed for eight weeks or until disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 08.10.2021 AND THE UNDERLYING ELECTRICITY DEMAND

Court expressly declined to examine merits. ¶ 4